

The Homestead Act of 1862

An Act to secure Homesteads to actual Settlers on the Public Domain —
excerpt

Directions: Read the law's own words on the left. The right column says the same thing in a shorter sentence.

The law's own words (Homestead Act, 1862)	In shorter words
Section 1	
Be it enacted ... That any person who is the head of a family, or who has arrived at the age of twenty-one years,	Any adult 21 or older, or the head of a family,
and is a citizen of the United States, or who shall have filed his declaration of intention to become such,	who is a U.S. citizen (or is becoming one),
and who has never borne arms against the United States Government or given aid and comfort to its enemies,	and who never fought against the United States,
shall ... be entitled to enter one quarter section or a less quantity of unappropriated public lands,	could claim up to 160 acres (a quarter section) of public land.
subject to preemption at one dollar and twenty-five cents, or less, per acre;	Most of that land cost \$1.25 an acre or less.
or eighty acres or less of such unappropriated lands, at two dollars and fifty cents per acre,	Smaller 80-acre plots cost \$2.50 an acre.
to be located in a body ... and after the same shall have been surveyed.	The land had to be in one block and already surveyed.
Section 2	
That the person applying ... shall ... make affidavit before the said register or receiver	To apply, you went to the land office and signed a sworn statement (an affidavit).

that he or she is the head of a family, or is twenty-one years or more of age, or shall have performed service in the army or navy of the United States,	You swore you were 21+, a head of family, or a veteran,
and that he has never borne arms against the Government of the United States or given aid and comfort to its enemies,	that you never fought against the U.S.,
and that said entry is made for the purpose of actual settlement and cultivation, and not ... for the use or benefit of any other person ...	and that the land was for your own farm — not secretly for someone else.
and on payment of ten dollars, he or she shall thereupon be permitted to enter the quantity of land specified:	You paid a \$10 fee and could then claim the land.
Provided, however, That no certificate shall be given or patent issued therefor until the expiration of five years from the date of such entry;	But you did not get the title (patent) for five years.
and ... the person making such entry shall prove by two credible witnesses that he, she, or they have resided upon or cultivated the same for the term of five years ...	After five years, two witnesses had to prove you lived on and farmed the land.
and shall make affidavit that no part of said land has been alienated, and that he has borne true allegiance to the Government of the United States;	You also swore you had not sold any of it and had stayed loyal to the U.S.
then ... he, she, or they, if at that time a citizen of the United States, shall be entitled to a patent.	Then, if a citizen, you finally got the title to the land.
Section 3	
And be it further enacted, That the register of the land office shall note all such applications ... and keep a register of all such entries,	The land officer recorded every claim in official books,

and make return thereof to the General Land Office, together with the proof upon which they have been founded.	and sent the records and proof to the main Land Office.
Section 4	
And be it further enacted, That no lands acquired under the provisions of this act shall in any event become liable to the satisfaction of any debt or debts contracted prior to the issuing of the patent therefor.	Old debts could not be used to take your homestead before you earned the title.
Section 5	
And be it further enacted, That if ... the person having filed such affidavit shall have actually changed his or her residence, or abandoned the said land for more than six months at any time,	If you moved away or left the land for more than six months,
then and in that event the land so entered shall revert to the government.	you lost it — the land went back to the government.

[The Act's remaining sections (6–8) cover the land-office fees, penalties for making a false affidavit, and protection for settlers' existing pre-emption rights.]

Source: Homestead Act of 1862, 12 Stat. 392 (37th Cong., Sess. II, ch. 75); approved May 20, 1862. U.S. National Archives (RG 11). Public domain. · © 2026 TroopToTeacher Technologies LLC · Generated 2026-08-11T03:04:59Z